

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF MIZILIN AND OTHERS v. RUSSIA

(Applications nos. 50064/18 and 26 others –
see appended list)

JUDGMENT

STRASBOURG

1 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Mizilin and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of nationwide protests that took place in various Russian cities on 5 May 2018 before Vladimir Putin's inauguration for the fourth presidential term. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies, and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 61-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences ("the CAO").

V. REMAINING COMPLAINTS

14. Some applicants raised further complaints under Article 6 of the Convention concerning fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Articles 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Faris Vehabović President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	50064/18 10/10/2018	**Igor Aleksandrovich MIZILIN** 1990	Zhdanov Ivan Yuryevich Vilnius	Voronezh	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 19/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
2.	54135/18 02/11/2018	**Alisa Dmitriyevna MASLOVA** 1998	Antokhin Yevgeniy Vyacheslavovich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 18/09/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 4.50 p.m., brought to the police station at 5.30 p.m. and released at 11.40 p.m. on 05/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
3.	6674/19 21/01/2019	**Alla Nikolayevna NOVICHENKO** 1968	Zhdanov Ivan Yuryevich Vilnius	Ivanovo	Article 20.2 § 5 of CAO	fine of RUB 10,000	Ivanovo Regional Court 21/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500

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4.	6719/19 21/01/2019	**Petr Ivanovich ZUEV** 1946	Zhdanov Ivan Yuryevich Vilnius	Kaliningrad	Article 20.2 § 8 of CAO	40 hours of community work	Kaliningrad Regional Court 16/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 8 of CAO.	3,500
5.	6730/19 21/01/2019	**Anton Aleksandrovich SEMENOV** 1995	Zhdanov Ivan Yuryevich Vilnius	Moscow	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 06/09/2018	Art. 5 (1) - unlawful deprivation of liberty – escorting to and detention at the police station in excess of three hours after the offence report was compiled (arrested at 3.50 p.m. and brought to the police station at 4.50 p.m. on 05/05/2018, released at 8 a.m. on 07/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 19.3 § 1 of CAO.	4,000
6.	6949/19 21/01/2019	**Oleg Viktorovich KISELEV** 1976	Zhdanov Ivan Yuryevich Vilnius	Vladimir	Article 20.2 § 5 of CAO	fine of RUB 5,000	Vladimir Regional Court 04/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
7.	6975/19 21/01/2019	**Aleksey Andreyevich IZMAYLOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Vladimir	Article 20.2 § 5 of CAO	fine of RUB 5,000	Vladimir Regional Court 04/09/2018		3,500
8.	7043/19 21/01/2019	**Artem Alekseyevich GORDEYEV** 1979	Zhdanov Ivan Yuryevich Vilnius	Saratov	Article 20.2 § 5 of CAO	fine of RUB 13,000	Saratov Regional Court 23/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500

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9.	7335/19 21/01/2019	**Talgat Ulfatovich SADYKOV** 1957	Zhdanov Ivan Yuryevich Vilnius	Smolensk	Article 20.2 § 5 of CAO	fine of RUB 5,000	Smolensk Regional Court 08/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
10.	7391/19 21/01/2019	**Ivan Dmitriyevich MISHUTIN** 1990	Zhdanov Ivan Yuryevich Vilnius	Moscow	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 12/09/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 6.45 p.m., brought to the police station at 7.05 p.m. on 05/05/2018; released at 12.05 a.m. on 06/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 19.3 § 1 of CAO.	4,000
11.	7394/19 21/01/2019	**Darya Dmitriyevna NOSOVA** 1999	Zhdanov Ivan Yuryevich Vilnius	Vladimir	Article 20.2 § 5 of CAO	fine of RUB 5,000	Vladimir Regional Court 11/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
12.	7419/19 21/01/2019	**Lyubov Vladimirovna RUBLEVA** 1978	Zhdanov Ivan Yuryevich Vilnius	Vladimir	Article 20.2 § 5 of CAO	fine of RUB 5,000	Vladimir Regional Court 06/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
13.	7421/19 21/01/2019	**Tatyana Petrovna BOZHENOVA** 1957	Zhdanov Ivan Yuryevich Vilnius	Kaliningrad	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 06/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500

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14.	7694/19 22/01/2019	**Dmitriy Andreyevich SVITNEV** 1996	Popkov Aleksandr Vasilyevich Sochi	Krasnodar	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 25/07/2018		3,500
15.	7697/19 22/01/2019	**Nikolay Sergeyevich SAPRYKIN** 1984	Popkov Aleksandr Vasilyevich Sochi	Krasnodar	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 31/07/2018		3,500
16.	7831/19 16/01/2019	**Khachatur Vitalyevich KUCHYUKYAN** 1992	Vasin Vladimir Valeryevich Krasnoyarsk	Krasnoyarsk	Article 20.2 § 5 of CAO	35 hours of community work	Krasnoyarsk Regional Court 19/07/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.30 p.m., brought to the police station at 3.15 p.m., released at 6 p.m. on 05/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
17.	8221/19 21/01/2019	**Sergey Leonidovich KUKHARETS** 1993	Zhdanov Ivan Yuryevich Vilnius	Vladimir	Article 20.2 § 5 of CAO	fine of RUB 5,000	Vladimir Regional Court 11/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
18.	8235/19 21/01/2019	**Mariya Gennadyevna PETUKHOVA** 1984	Zhdanov Ivan Yuryevich Vilnius	Kaliningrad	Article 20.2 § 8 of CAO	fine of RUB 200,000	Kaliningrad Regional Court 09/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 8 of CAO.	6,000

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19.	8796/19 21/01/2019	**Andrey Vladimirovich BUGAYEV** 1996	Zhdanov Ivan Yuryevich Vilnius	Krasnoyarsk	Article 20.2 § 5 of CAO	35 hours of community work	Krasnoyarsk Regional Court 20/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
20.	8810/19 30/01/2019	**Svyatoslav Igorevich ZISMAN-MALER** 1986	Nisanbekova Elza Rinatovna Kazan	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/07/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to and detention at the police station in excess of three hours after the offence report was compiled (arrested at 2.40 p.m., brought to the police station at 3 p.m. on 05/05/2018; released at 10 a.m. on 07/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 6.1 of CAO.	4,000
21.	8891/19 01/02/2019	**Ilya Yevgenyevich ZHILTSOV** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Moscow	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 06/09/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 6.30 p.m., brought to the police station at 8.30 p.m. on 05/05/2018; released at 12.00 a.m. on 06/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 19.3 § 1 of CAO.	4,000

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22.	8966/19 26/01/2019	**Nikita Mikhaylovich GOLOVASHKIN** 1995	Charskiy Vladimir Valentinovich Saratov	Saratov	Article 20.2 § 6.1 of CAO	detention for 2 days	Saratov Regional Court 26/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 6.1 of CAO.	4,000
23.	21185/19 07/04/2019	**Aleksandr Valentinovich BOBUROV** 1972	Memorial Human Rights Centre Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/01/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.25 p.m., brought to the police station at 3 p.m., released at 5.20 p.m. on 05/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
24.	47516/19 26/08/2019	**Liliya Valeryevna SADAKOVA** 1995	Zboroshenko Nikolay Sergeyevich Mytishchi	Kirov	Article 20.2 § 5 of CAO	fine of RUB 15,000	Kirov Regional Court 05/03/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500
25.	49646/19 18/09/2019	**Levon Leonidovich SMIRNOV** 1978	Memorial Human Rights Centre Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/04/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.50 p.m., brought to the police station at 6 p.m., released at 9 p.m. on 05/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000

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26.	55941/19 11/10/2019	**Ivan Aleksandrovich MAKACHKA** 1995	Memorial Human Rights Centre Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/04/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 5 p.m. and brought to the police station at 6.10 p.m. on 05/05/2018, released at 7.10 a.m. on 06/05/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	4,000
27.	64256/19 04/12/2019	**Anna Sergeyevna STRIGA** 1994	Vasin Vladimir Valeryevich Krasnoyarsk	Krasnoyarsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 06/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Article 20.2 § 5 of CAO.	3,500

[1] Plus any tax that may be chargeable to the applicants.